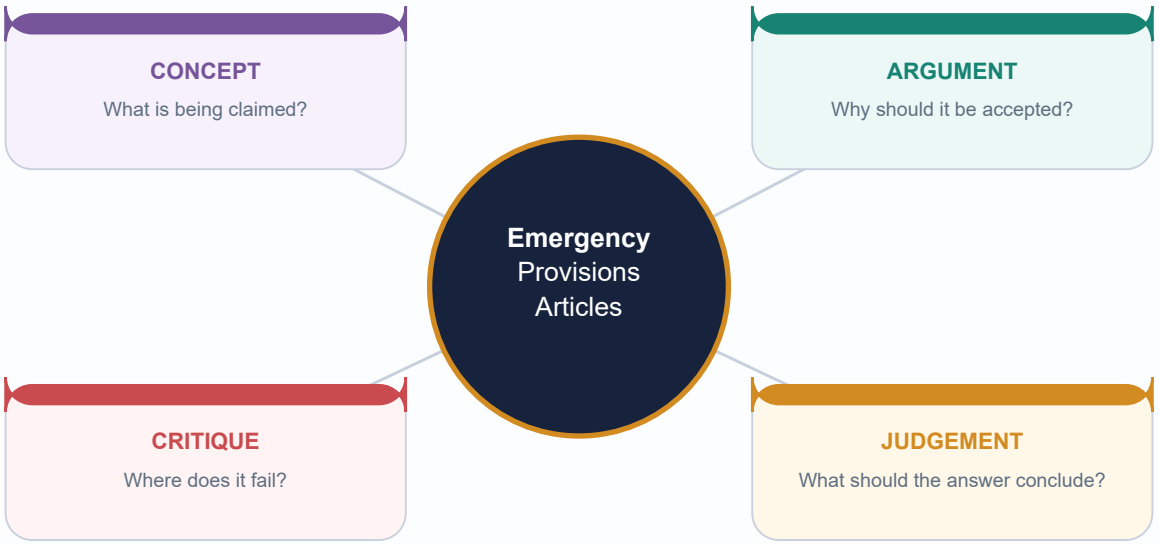
UPSC INDIAN POLITY

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: Emergency-Provisions.md + 14_Emergency-Provisions.md
Learning cards: 51



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Basic (foundation) · GS Paper: GS-II	**Dimension 2** Grounded in: Laxmikant Ch. 16, Part XVIII. □ = from book · □□ = case law · □ = current affairs.
Dimension 3 Advanced: optional deeper detail in advanced/14Emergency-Provisions.md — not required for any mark.	

STATIC THEORY

- **Grounded in:** Laxmikant Ch. 16, Part XVIII. □ = from book · □□ = case law · □ = current affairs.

- *Advanced: optional deeper detail in advanced/14_Emergency-Provisions.md — not required for any mark.*

MUST-KNOW FACTS

1. Grounded in: Laxmikant Ch. 16, Part XVIII. = from book · □□ = case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot — 3 emergencies

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Type	Article	Ground
□ **National**	**352**	War / external aggression / **armed rebellion**
□ **President's Rule** (State)	**356**	Failure of constitutional machinery in a state
□ **Financial**	**360**	Threat to India's financial stability/credit

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Snapshot — 3 emergencies

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

 Emergency provisions can **temporarily expand Union executive, legislative or fiscal control** without abolishing States or amending the federal Constitution. Under Article 352, State governments and legislatures continue; Article 356 has sharper State-specific consequences. The **44th Amendment (1978)** added most safeguards after the misuse of the **1975 Emergency**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Emergency provisions can **temporarily expand Union executive, legislative or fiscal control** without abolishing States or amending the federal Constitution. Under Article 352, State governments and legislatures continue; Article 356 has sharper State-specific consequences. The **44th Amendment (1978)** added most safeguards after the misuse of the **1975 Emergency**.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · National Emergency (352) — key numbers

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Rule
Recommendation	**Cabinet in writing** (not PM alone)
Approval	**1 month**, **special majority**
Duration	6 months, **indefinite** renewal
Revocation	LS simple-majority disapproval → must revoke
Declared	**1962, 1971, 1975** (3 times)

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → National Emergency (352) — key numbers

HIGH

Foundation · National Emergency (352) — key numbers

GS-II Indian Polity

INTRO & ORIGIN

 FR effect: During a war/external-aggression Emergency, **Article 358** automatically removes Article 19 restrictions only for emergency-related laws carrying the constitutional recital and action under them. **Article 359** requires a presidential order suspending the right to move specified courts for enforcement of named rights; **Articles 20 and 21 remain enforceable**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. FR effect: During a war/external-aggression Emergency, **Article 358** automatically removes Article 19 restrictions only for emergency-related laws carrying the constitutional recital and action under them. **Article 359** requires a presidential order suspending the right to move specified courts for enforcement of named rights; **Articles 20 and 21 remain enforceable**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → National Emergency (352) — key numbers

HIGH

Foundation · President's Rule (356)

GS-II Indian Polity

INTRO & ORIGIN

 Approval within **2 months, simple majority**; max **3 years**. Beyond 1 year needs a National Emergency + **ECI certification**. CM/CoM dismissed; assembly suspended/dissolved; **HC untouched**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

PRESIDENT'S RULE (356): RECALL MAP

President's Rule (356)

V

Dimension 1 Approval within 2 months, simple majority; max 3 years. Beyond 1 year needs a National Emergency + ECI certification. CM/CoM dismissed; assembly sus	**Dimension 2** Bommai (1994): Art 356 is judicially reviewable; majority tested on the floor;
Dimension 3 secularism = basic feature; court can restore a dismissed government.	

STATIC THEORY

- **Bommai (1994):** Art 356 is **judicially reviewable**; majority tested on the **floor**;

- **secularism = basic feature**; court can **restore** a dismissed government.

MEMORY HOOK

Bommai (1994): Art 356 is judicially reviewable; majority tested on the floor;

MUST-KNOW FACTS

1. Approval within **2 months, simple majority**; max **3 years**. Beyond 1 year needs a National Emergency + **ECI certification**. CM/CoM dismissed; assembly suspended/dissolved; **HC untouched**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → President's Rule (356)

HIGH

Foundation · Financial Emergency (360)

GS-II Indian Polity

INTRO & ORIGIN

 Approval **2 months, simple majority**; then **indefinite** (no renewal). Centre can cut salaries of state staff **and SC/HC judges**. **Never declared.**

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Approval **2 months, simple majority**; then **indefinite** (no renewal). Centre can cut salaries of state staff **and SC/HC judges**. **Never declared.**

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Financial Emergency (360)

HIGH

Foundation · Quick contrast

GS-II Indian Polity

INTRO & ORIGIN

 352 = Special majority + indefinite + affects FRs + LS can revoke.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **356 = Simple majority + max 3 years + no FR effect + President revokes.**

MEMORY HOOK

352 = Special majority + indefinite + affects FRs + LS can revoke. | 356 = Simple majority + max 3 years + no FR effect + President revokes.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Quick contrast

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

□ "Internal disturbance" → replaced by "**armed rebellion**" (44th Amdt).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 □ "Internal disturbance" → replaced by "armed rebellion" (44th Amdt).	**Dimension 2** □ Alladi Krishnaswami Ayyar: emergency provisions = "life-breath of the Constitution."
Dimension 3 □ Ambedkar hoped Art 356 would stay a "dead letter" (last resort).	**Dimension 4** □ Financial Emergency modelled on the US National Recovery Act 1933.

STATIC THEORY

- □ **Alladi Krishnaswami Ayyar:** emergency provisions = "**life-breath of the Constitution**."
- □ Ambedkar hoped **Art 356** would stay a "**dead letter**" (last resort).
- □ Financial Emergency modelled on the US **National Recovery Act 1933**.

MUST-KNOW FACTS

1. "Internal disturbance" → replaced by "**armed rebellion**" (44th Amdt).
2. **Alladi Krishnaswami Ayyar:** emergency provisions = "**life-breath of the Constitution**."
3. Ambedkar hoped **Art 356** would stay a "**dead letter**" (last resort).
4. Financial Emergency modelled on the US **National Recovery Act 1933**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ □ **Current control, 28 August 2026:** no National Emergency or Financial Emergency is in force. President's Rule imposed in Manipur on 13 February 2025 was revoked on **4 February 2026** when an elected government was restored. The 50th anniversary of the 1975 Emergency revived safeguard debates; this changed no constitutional rule. □□ Art 358 vs 359, the *Bommai* propositions and the contrast tables are all held **in this file**. *Advanced: optional deeper detail in advanced/14_Emergency-Provisions.md — not required for any mark.*

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Purpose: make this Core file independently able to answer the two routed GS-II demands and unfamiliar questions on all three emergencies, the amendment history and the case law — without opening Advanced.

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 9.0 Direct Mains demands owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 9.0 Direct Mains demands owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

2018 · GS-II · Q3 *— Demand (neutral rendering): the circumstances in which a Financial Emergency can be proclaimed and the consequences that follow. Directive:* ***Under what circumstances*** *(+ consequences) ·* ***10 marks · 150 words****.* ***Core routing supersedes the older advanced/14_Emergency-Provisions.md pointer for this demand. Executable route:*** *(1)* ***Provision*** *—* ***Art 360****. (2)* ***Circumstance*** *— the President's satisfaction that the* ***financial stability or credit of India or any part*** *is threatened. (3)* ***Procedure*** *— proclamation approved by both Houses within* ***two months*** *by* ***simple majority****; then continues* ***indefinitely*** *with* ***no maximum and no renewal****; revocable anytime; reviewable post-44th. (4)* ***Consequences*** *— Centre may direct States to observe* ***canons of financial propriety****;* ***reduce salaries*** *of persons serving a State; require all State* ***Money Bills*** *to be reserved for the President; and reduce the salaries of* ***Union employees and even Supreme Court and High Court judges****. (5)* ***Effect*** *— converts the federal financial order into a* ***unitary*** *one. (6)* ***Verdict*** *— a drastic centralising last-resort power;* ***never proclaimed*** *(closest: the 1991 balance-of-payments crisis), which itself signals its severity.* ***2023 · GS-II · Q13*** *— Demand (neutral rendering): the legal and political factors behind the reduced frequency of Article 356 since the mid-1990s. Directive:* ***Account for*** *·* ***15 marks · 250 words****.* ***Core routing supersedes the older advanced/14_Emergency-Provisions.md pointer for this demand. Executable route:*** *(1)* ***Thesis*** *— the decline is explained by a* ***legal watershed*** *(Bommai) and a* ***political shift*** *(the coalition era and a federalised party system), reinforced by commission norms. (2)* ***Legal factor*** *— S.R. Bommai (1994): Art 356 is* ***judicially reviewable****; majority must be tested on the* ***floor of the House****, not by the Governor's subjective report; the President's satisfaction must rest on* ***relevant material*** *with the burden on the Centre; the Assembly may be dissolved* ***only after Parliament approves****; courts can* ***restore*** *a wrongly dismissed government; Art 356 is an* ***exceptional, last-resort*** *power. (3)* ***Legal reinforcement*** *— Rameshwar Prasad (2006) struck down the 2005 Bihar Assembly dissolution as mala fide. (4)* ***Political factor*** *— post-1989/1996 coalition governments and powerful regional parties raised the political cost of dismissing State governments. (5)* ***Institutional factor*** *— the* ***Sarkaria*** *and* ***Punchhi*** *Commissions urged sparing, last-resort use with a prior warning and a floor test. (6)* ***Verdict*** *— Art 356 has moved from a routine partisan instrument (invoked* ***over 125 times****, mostly before the mid-1990s) to a genuinely exceptional remedy — judicial review and political federalism disciplining a centralising power together.*

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.0 Direct Mains demands owned by this Core file

HIGH

Foundation · 9.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Financial Emergency	"Under what circumstances", "consequences", Discuss	Art 360 → trigger → procedure → consequences → never-used verdict
Article 356 decline / misuse	"Account for", "taming of Art 356", Critically examine	*Bommai*/*Rameshwar Prasad* → coalition politics → commissions → verdict
Federal–unitary balance	"emergency makes India unitary", Evaluate	Effects of 352/356/360 → 44th Amendment limits → *Bommai* floor → verdict
Fundamental rights in emergency	"Art 358 vs 359", "Art 20/21", Examine	358 (Art 19, External) vs 359 → 20/21 non-suspendable → *ADM Jabalpur*→*Puttaswamy*
Safeguards after 1975	"44th Amendment safeguards", Analyse	Misuse of 1975 → Shah Commission → 44th Amendment fixes → verdict
Emergency as basic structure test	"constitutional dictatorship", Comment	CA criticism → *Bommai* limits → judicial review → verdict

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.1 Demand and directive map

HIGH

Foundation · 9.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The emergency provisions make India "unitary in an emergency without a formal amendment", but the 44th Amendment and Bommai *have converted them from a standing threat to democracy into an exceptional, reviewable and largely self-limiting power.*

Foundation learning layer: concepts → constitutional detail → UPSC application.

9.2 QUALIFIED THESIS OPTIONS: RECALL MAP

9.2 Qualified thesis options

V

Dimension 1
The emergency provisions make India "unitary in an emergency without a formal amendment", but the 44th Amendment and Bommai have converted them from a

Dimension 2
The decline of Article 356 since the mid-1990s is not a change in the text but in its politics and its case law: coalition federalism raised the cost

Dimension 3
The non-suspendability of Articles 20 and 21 and the overruling of ADM Jabalpur mean the darkest possibility of the 1975 Emergency — detention beyond

Dimension 4
A Financial Emergency has never been proclaimed not because Article 360 is weak but because it is so drastic that its very existence is a deterrent an

STATIC THEORY

- The decline of Article 356 since the mid-1990s is not a change in the text but in its politics and its case law: coalition federalism raised the cost and Bommai *raised the risk.*

- The non-suspendability of Articles 20 and 21 and the overruling of ADM Jabalpur *mean the darkest possibility of the 1975 Emergency — detention beyond the reach of the courts — is now constitutionally foreclosed.*

- A Financial Emergency has never been proclaimed not because Article 360 is weak but because it is so drastic that its very existence is a deterrent and a signal of last resort.

- Emergency provisions are simultaneously the Constitution's "safety-valve" and its most dangerous instrument; their legitimacy rests entirely on the post-1978 safeguards that make their misuse justiciable.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.2 Qualified thesis options

HIGH

Foundation · 9.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Provision → trigger → procedure → consequences → verdict	3 units, at least two Articles
15	Thesis → legal factors → political factors → institutional factors → verdict	5–6 units incl. a case + a commission
20	Thesis → all three emergencies → amendment history → case law → federal balance → graded verdict	6–8 units + a safeguards paragraph

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.3 Mark-scaled structures

HIGH

Foundation · 9.4 Bank A — National Emergency (Art 352) and the amendment history

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Element	Anchor	Mechanism	Caution
□ Trigger	**Art 352** — war, external aggression or **armed rebellion** (even imminent danger)	War/external aggression = **External** Emergency; armed rebellion = **Internal**	"Armed rebellion" replaced "internal disturbance" via the **44th Amendment (1978)**
□ Recommendation	44th Amendment	Only on the **written recommendation of the Cabinet**, not the PM alone	A direct fix for the 1975 misuse
□ Approval & duration	Art 352	Approved within **one month** by **special majority**; continues **six months** at a time, renewable **indefinitely**	Earlier it was two months/simple majority (pre-44th)
□ Revocation	44th Amendment	President may revoke anytime; **must** revoke if the **Lok Sabha** disapproves by simple majority; **one-tenth** of LS members can requisition a special sitting within 14 days	The Rajya Sabha has no revocation role
□ Declarations	Historical fact	**1962** (China), **1971** (Pakistan), **1975** (internal disturbance)	The 1975 proclamation is the contested one; **Shah Commission** faulted it

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.4 Bank A — National Emergency (Art 352) and the amendment history

HIGH

Foundation · 9.4 Bank A — National Emergency (Art 352) and the amendment history

GS-II Indian Polity

INTRO & ORIGIN

Amendment-history capsule: □ **38th Amendment (1975)** made the President's satisfaction **immune from judicial review**; □ **42nd Amendment (1976)** allowed an Emergency confined to **part of India** and extended legislature terms; □ **44th Amendment (1978)** added the safeguards above and **restored judicial review**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Amendment-history capsule: 38th Amendment (1975) made the President's satisfaction **immune from judicial review**; **42nd Amendment (1976)** allowed an Emergency confined to **part of India** and extended legislature terms; **44th Amendment (1978)** added the safeguards above and **restored judicial review**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.4 Bank A — National Emergency (Art 352) and the amendment history

HIGH

Foundation · 9.5 Bank B — Fundamental rights in emergency (Art 358, 359) and the ADM Jabalpur line

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Element	Anchor	Precise proposition	Caution
□ Art 358	Art 358	**Automatically suspends Art 19**; post-44th only during a **War/External** Emergency and only for laws related to it	Does **not** operate in an armed-rebellion (internal) emergency
□ Art 359	Art 359	President may **suspend the enforcement** (not the rights themselves) of **specified** Fundamental Rights	Post-44th, **Articles 20 and 21 can NEVER be suspended**
□ *ADM Jabalpur v. Shivkant Shukla* (1976)	Supreme Court	During the 1975 Emergency the majority held that a detainee had **no locus to move any court for enforcement of Art 21**; **Justice H.R. Khanna dissented**	The Constitution's low point; the direct trigger for the 44th Amendment's Art 20/21 protection
□ *K.S. Puttaswamy v. Union of India* (2017)	Nine-judge Bench	Expressly held *ADM Jabalpur* to have been **wrongly decided** and **overruled** it	Detention beyond judicial reach is now constitutionally foreclosed

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.5 Bank B — Fundamental rights in emergency (Art 358, 359) and the ADM Jabalpur line

HIGH

Foundation · 9.6 Bank C — President's Rule (Art 356): mechanism, Bommai and decline

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Element	Anchor	Mechanism / proposition	Caution
□ Ground	**Art 356** (with **Art 355** duty and **Art 365** trigger)	President satisfied that a State's government "**cannot be carried on in accordance with the Constitution**", on the Governor's report **or otherwise**	Art 365 (failure to comply with Central directions) is a distinct trigger
□ Approval & duration	Art 356	Approved within **two months** by **simple majority**; continues six months at a time up to a **maximum of three years**	Beyond **one year**, extension needs a **National Emergency in force** + **ECI certification** (44th Amendment)
□ Consequences	Art 356	President assumes the State executive's functions, **dismisses the CoM/CM**, Parliament exercises State legislative power, Assembly suspended or dissolved	The **State High Court's** powers **cannot** be taken over
□ *S.R. Bommai* (1994)	Nine-judge Bench	Proclamation is **judicially reviewable**; majority tested on the **floor of the House**; satisfaction on **relevant material** (burden on the Centre); Assembly dissolved **only after Parliament approves**; courts can **restore** a dismissed government; **secularism is a basic feature**; Art 356 is a **last resort**	The single most important limiting authority
□ *Rameshwar Prasad* (2006)	Supreme Court	The **2005 dissolution of the Bihar Assembly** on the Governor's report was **unconstitutional and mala fide**	Shows continued post-*Bommai* judicial vigilance
□ Chronology	Historical fact	Imposed **over 125 times**, the great majority **before the mid-1990s**	Ambedkar hoped it would remain a "**dead letter**"

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.6 Bank C — President's Rule (Art 356): mechanism, Bommai and decline

HIGH

Foundation · 9.7 Bank D — Financial Emergency (Art 360)

GS-II Indian Polity

INTRO & ORIGIN

 Trigger → Art 360: the President's satisfaction that the **financial stability or credit of India** or any part is threatened.

Foundation learning layer: concepts → constitutional detail → UPSC application.

9.7 BANK D — FINANCIAL EMERGENCY (ART 360): RECALL MAP

9.7 Bank D — Financial Emergency (Art 360)

V

Dimension 1 Trigger → Art 360: the President's satisfaction that the financial stability or credit of India or any part is threatened.	**Dimension 2** Procedure: approval within two months by simple majority; once approved it continues indefinitely with no renewal.
Dimension 3 Consequences: Centre directs States on canons of financial propriety; may reduce the salaries of State and Union employees and of Supreme Court and	**Dimension 4** Status: never proclaimed (closest: the 1991 crisis); modelled on the US National Recovery/Industrial Recovery Act, 1933 (per Ambedkar); H.N. Kunz

STATIC THEORY

- **Procedure:** approval within **two months** by **simple majority**; once approved it continues **indefinitely** with **no renewal**.

- **Consequences:** Centre directs States on **canons of financial propriety**; may **reduce the salaries** of State and Union employees **and of Supreme Court and High Court judges**; State Money Bills reserved for the President.

- **Status: never proclaimed** (closest: the **1991** crisis); modelled on the US **National Recovery/Industrial Recovery Act, 1933** (per Ambedkar); H.N. Kunzru warned it threatens States' financial autonomy.

MUST-KNOW FACTS

1. Trigger → Art 360: the President's satisfaction that the **financial stability or credit of India** or any part is threatened.

2. Procedure: approval within **two months** by **simple majority**; once approved it continues **indefinitely** with **no renewal**.

3. Consequences: Centre directs States on **canons of financial propriety**; may **reduce the salaries** of State and Union employees **and of Supreme Court and High Court judges**; State Money Bills reserved for the President.

4. Status: never proclaimed (closest: the **1991** crisis); modelled on the US **National Recovery/Industrial Recovery Act, 1933** (per Ambedkar); H.N. Kunzru warned it threatens States' financial autonomy.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.7 Bank D — Financial Emergency (Art 360)

HIGH

Foundation · 9.8 Criticism, commission recommendations, counter-argument and variation

GS-II Indian Polity

INTRO & ORIGIN

Constituent Assembly criticism: □ **H.V. Kamath** ("totalitarian/police state"), **K.T. Shah** ("chapter of reaction and retrogression"), **T.T. Krishnamachari** ("constitutional dictatorship"), **H.N. Kunzru** (threat to fiscal autonomy); defenders **Alladi Krishnaswami Ayyar** ("very **life-breath** of the Constitution") and **Mahabir Tyagi** ("**safety-valve**").

Foundation learning layer: concepts → constitutional detail → UPSC application.

9.8 CRITICISM, COMMISSION RECOMMENDATIONS, COUNTER-ARGUMENT AND VARIATION: RECALL MAP

9.8 Criticism, commission recommendations, counter-argument and variation

V

Dimension 1 Constituent Assembly criticism: □ H.V. Kamath ("totalitarian/police state"), K.T. Shah ("chapter of reaction and retrogression"), T.T. Krishnamachari	**Dimension 2** Commission norms on Art 356: □ the Sarkaria Commission (1988) and Punchhi Commission (2007–10) recommended Art 356 be used only as a last resort, afte
Dimension 3 Counter-argument (safeguards work): □□ the 44th Amendment, Bommai, Rameshwar Prasad and the overruling of ADM Jabalpur show the provisions are now rev	**Dimension 4** Federal/State variation: □□ Art 356 was historically used disproportionately against opposition-ruled States; its decline tracks the rise of regional

STATIC THEORY

- **Commission norms on Art 356:** □ the **Sarkaria Commission (1988)** and **Punchhi Commission (2007–10)** recommended Art 356 be used **only as a last resort**, after a **warning** to the State and, wherever possible, a **floor test**; the Governor's report should be a "speaking document". □□ These are recommendations, not binding law, but they shaped the post-1994 restraint.

- **Counter-argument (safeguards work):** □□ the 44th Amendment, *Bommai*, *Rameshwar Prasad* and the overruling of *ADM Jabalpur* show the provisions are now **reviewable and self-limiting** rather than a standing dictatorship.

- **Federal/State variation:** □□ Art 356 was historically used disproportionately against **opposition-ruled States**; its decline tracks the rise of regional parties and coalition dependence.

- **Implementation constraint:** □□ the Governor's discretion and the "or otherwise" satisfaction remain the weak points, which is why floor-test controversies still reach the courts.

MUST-KNOW FACTS

1. Constituent Assembly criticism: H.V. Kamath ("totalitarian/police state"), **K.T. Shah** ("chapter of reaction and retrogression"), **T.T. Krishnamachari** ("constitutional dictatorship"), **H.N. Kunzru** (threat to fiscal autonomy); defenders **Alladi Krishnaswami Ayyar** ("very **life-breath** of the Constitution") and **Mahabir Tyagi** ("**safety-valve**").

2. Commission norms on Art 356: the **Sarkaria Commission (1988)** and **Punchhi Commission (2007–10)** recommended Art 356 be used **only as a last resort**, after a **warning** to the State and, wherever possible, a **floor test**; the Governor's report should be a "speaking document". □□ These are recommendations, not binding law, but they shaped the post-1994 restraint.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.8 Criticism, commission recommendations, counter-argument and variation

HIGH

Foundation · 9.9 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Financial Emergency verdict: "Article 360's drastic, unitary consequences explain both why it exists and why no government has dared to use it — its deterrent value lies precisely in its severity."

Foundation learning layer: concepts → constitutional detail → UPSC application.

9.9 VERDICT SCAFFOLDS: RECALL MAP

9.9 Verdict scaffolds

V

Dimension 1 Financial Emergency verdict: "Article 360's drastic, unitary consequences explain both why it exists and why no government has dared to use it — its d	**Dimension 2** Article 356 verdict: "The decline of President's Rule is the clearest proof that a centralising provision can be disciplined without amending it, once
Dimension 3 Federal-balance verdict: "Emergency provisions still make India unitary in a crisis, but after 1978 and Bommai they do so under justiciable limits, so	

STATIC THEORY

- **Article 356 verdict:** "The decline of President's Rule is the clearest proof that a centralising provision can be disciplined without amending it, once judicial review and coalition politics raise the cost of its misuse."

- **Federal-balance verdict:** "Emergency provisions still make India unitary in a crisis, but after 1978 and *Bommai* they do so under justiciable limits, so the safety-valve no longer doubles as a loaded weapon."

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.9 Verdict scaffolds

HIGH

Foundation · 9.10 Prelims close-option distinctions · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
National vs President's Rule majority	**352 = special** majority; **356 = simple** majority
Maximum duration	**352 = indefinite**; **356 = three years**; **360 = indefinite (no renewal)**
Art 358 vs 359	358 = **automatic**, only **Art 19**, only **External** Emergency; 359 = by **order**, specified FRs, both types
Non-suspendable rights	**Articles 20 and 21** can **never** be suspended (44th Amendment)
"Internal disturbance"	Replaced by "**armed rebellion**" (44th Amendment)
Revocation of National Emergency	The **Lok Sabha** can force revocation; the President revokes President's Rule
Financial Emergency status	**Never proclaimed**
High Court in President's Rule	The President **cannot** assume the State **High Court's** powers

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.10 Prelims close-option distinctions

HIGH

Foundation · 9.10 Prelims close-option distinctions · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Preventive detention & POTA (Art 22)	Preventive-detention safeguards sit in **Art 22** (Fundamental Rights), **not** the emergency Articles; **POTA (2002) was repealed in 2004**; even so **Arts 20 and 21 remain non-suspendable** in an emergency — primary owner is Fundamental-Rights.md

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.10 Prelims close-option distinctions

HIGH

Foundation · 9.11 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 Emergency provisions are **Part XVIII, Articles 352–360**; do not misplace them. National Emergency has been declared **three times (1962, 1971, 1975)**; a Financial Emergency **never**. The **44th Amendment (1978)**, not the 42nd, added the pro-liberty safeguards and made Articles 20 and 21 non-suspendable; the **38th Amendment (1975)** created the judicial-review immunity that the 44th later removed.

INTRO & ORIGIN

 ADM Jabalpur (1976) was **overruled** by *K.S. Puttaswamy* (2017) — never cite *ADM Jabalpur* as good law.

Foundation learning layer: concepts → constitutional detail → UPSC application.

9.11 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

9.11 Factual-risk and current-status controls

V

Dimension 1 ADM Jabalpur (1976) was overruled by K.S. Puttaswamy (2017) — never cite ADM Jabalpur as good law.	**Dimension 2** Bommai requires a floor test; a Governor's subjective report is not a valid substitute — do not attribute a "deemed" loss of majority to the Governo
Dimension 3 Cite the President's-Rule count as "over 125 times" (the commonly stated figure) rather than a false-precise number; note most predate the mid-1990	**Dimension 4** The 50th anniversary of the 1975 Emergency (25 June 2025) and the notified observance revived safeguard debates — frame it as commemoration/analy

STATIC THEORY

- *Bommai* requires a **floor test**; a Governor's subjective report is not a valid substitute — do not attribute a "deemed" loss of majority to the Governor.

- Cite the President's-Rule count as "**over 125 times**" (the commonly stated figure) rather than a false-precise number; note most predate the mid-1990s.

- The **50th anniversary of the 1975 Emergency (25 June 2025)** and the notified observance revived safeguard debates — frame it as commemoration/analysis, not as any change in law.

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

MUST-KNOW FACTS

1. *ADM Jabalpur* (1976) was **overruled** by *K.S. Puttaswamy* (2017) — never cite *ADM Jabalpur* as good law.

2. *Bommai* requires a **floor test**; a Governor's subjective report is not a valid substitute — do not attribute a "deemed" loss of majority to the Governor.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → 9.11 Factual-risk and current-status controls

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	Prelims GS-I	53	Article 356 President's Rule consequences in a state	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2023	Prelims GS-I	77	Constitutional provisions security protection detention POTA	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2018, 2023* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *2*

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Article 356 President's Rule consequences in a state

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Article 356 President's Rule consequences in a state	**Dimension 2** Constitutional provisions security protection detention POTA
Dimension 3 The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

STATIC THEORY

- Constitutional provisions security protection detention POTA

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Part XVIII map: *Article 352 is National Emergency; Articles 353-354 state its executive, legislative and revenue effects; Article 355 is the Union duty; Articles 356-357 govern State constitutional failure; Articles 358-359 govern specified rights effects; Article 360 is Financial Emergency.* ***Article 352:*** *only war, external aggression or armed rebellion qualify. Written Union-Cabinet advice, one-month parliamentary approval by special majority, six-month renewals, revocation and the one-tenth Lok Sabha notice route inserted by the 44th Amendment must remain exact.* ***Rights firewall:*** *Article 358 concerns Article 19 only, operates automatically only during war/external-aggression emergency, and protects only emergency- related law/action carrying the required recital. Article 359 requires a Presidential order and cannot suspend enforcement of Articles 20 and 21.* ***Article 356:*** *the proclamation needs parliamentary approval within two months, continues in six-month blocks and ordinarily cannot exceed three years; beyond one year the Article 356(5) conditions apply. Parliament assumes legislative power but High Court jurisdiction cannot be taken over.* ***Judicial control:*** *S.R. Bommai makes the proclamation reviewable and prefers a floor test for disputed majority; Rameshwar Prasad condemns premature dissolution. Article 355, Article 365 and a Governor's report do not create automatic failure.* ***ADM Jabalpur:*** *the majority's habeas-corpus approach is repudiated; Justice H.R. Khanna's dissent is vindicated and K.S. Puttaswamy records the overruling. Do not use the case to negate the express post-44th Article 20/21 protection.* ***Article 360:*** *two-month parliamentary approval and indefinite continuation until revocation are textually distinct from Article 352/356. It has never been proclaimed and does not automatically suspend Fundamental Rights.* ***Current status:*** *the Gazette proclamation dated 4 February 2026 revoked the Manipur Article 356 proclamation of 13 February 2025. No National Emergency or Financial Emergency was located in force on 5 September 2026.* ***Four-ledger hostile audit:*** *triggers, dates, amendment history, cases, rights effects, federal consequences, commissions, current proclamations and every routed 2018-2026 demand were independently checked.* ***PYQ boundary:*** *the 2018 Article 356 objective demand is direct; the 2023 detention/POTA demand is retained only as an expressly supporting route and no direct Mains question is fabricated.*

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 16 / Part XVIII (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/Emergency-Provisions.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 16 / Part XVIII (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/Emergency-Provisions.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · Overview

GS-II Indian Polity

INTRO & ORIGIN

□ **Part XVIII, Art 352–360.** Purpose: safeguard sovereignty, unity, integrity, security & the Constitution. During an emergency **specified Union powers expand temporarily without abolishing the federal structure or State identity** — Ambedkar: the Constitution can be "**both unitary and federal according to time and circumstances**." □ **Three types:** National (Art 352), President's Rule / State Emergency (Art 356), Financial (Art 360).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Part XVIII, Art 352–360. Purpose: safeguard sovereignty, unity, integrity, security & the Constitution. During an emergency **specified Union powers expand temporarily without abolishing the federal structure or State identity** — Ambedkar: the Constitution can be "**both unitary and federal according to time and circumstances**." **Three types:** National (Art 352), President's Rule / State Emergency (Art 356), Financial (Art 360).

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Overview

HIGH

Advanced · NATIONAL EMERGENCY (Art 352) □□

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of NATIONAL EMERGENCY (Art 352) □□.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → NATIONAL EMERGENCY (Art 352) □□

HIGH

Advanced · Constitutional triggers

GS-II Indian Polity

INTRO & ORIGIN

□ Declared when security of India (or part) is threatened by **war, external aggression, or armed rebellion** — even on **imminent danger**. **"War/external aggression" = External Emergency; "armed rebellion" = Internal Emergency.** □ **44th Amendment (1978)** replaced "**internal disturbance**" (vague, used in 1975) with "**armed rebellion**." □ **42nd Amdt (1976)** allowed limiting it to **part** of India.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Declared when security of India (or part) is threatened by **war, external aggression, or armed rebellion** — even on **imminent danger**. **"War/external aggression" = External Emergency; "armed rebellion" = Internal Emergency. 44th Amendment (1978)** replaced "**internal disturbance**" (vague, used in 1975) with "**armed rebellion**." **42nd Amdt (1976)** allowed limiting it to **part** of India.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Constitutional triggers

HIGH

Advanced · Safeguards (mostly 44th Amendment) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Safeguard	Rule
□ Recommendation	Only on **written recommendation of the Cabinet** (not PM alone) — post-1975 fix
□ Parliamentary approval	Within **1 month** (was 2), by **special majority** (was simple)
□ Duration	**6 months**, renewable **indefinitely** every 6 months
□ Revocation	President anytime; **must revoke** if **Lok Sabha** (simple majority) disapproves; 1/10 of LS members can force a special sitting in 14 days
□ Judicial review	38th Amdt made it immune → **deleted by 44th**; *Minerva Mills (1980)* — reviewable for mala fide/perverse

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Safeguards (mostly 44th Amendment) □

HIGH

Advanced · Effects □

GS-II Indian Polity

INTRO & ORIGIN

(a) Centre-State: Centre can direct a state on **'any' matter** (states not suspended); Parliament legislates on **State List** (laws lapse 6 months after); President can issue **ordinances on state subjects**; can **modify revenue distribution** (Centre↔states). 42nd Amdt extended executive/legislative effects to **all states**, not just the emergency one. **(b) Lok Sabha & assemblies:** LS term extendable **1 year at a time** (max 6 months after emergency ends) — e.g. **5th Lok Sabha (1971-77)**; same for state assemblies. **(c) Fundamental Rights:** □

Advanced learning layer: concepts → constitutional detail → UPSC application.

EFFECTS □: RECALL MAP

Effects □

V

Dimension 1 (a) Centre-State: Centre can direct a state on 'any' matter (states not suspended); Parliament legislates on State List (laws lapse 6 months after); P	**Dimension 2** □ Art 358 — during a War/External Emergency, Article 19 does not restrict emergency-related laws carrying the required recital or executive action und
Dimension 3 □ Art 359 — President may suspend the right to move specified courts for enforcement of named Fundamental Rights, and pending proceedings, for the sta	**Dimension 4** post-44th Amdt Art 20 & 21 can NEVER be suspended.

STATIC THEORY

- □ **Art 358** — during a War/External Emergency, Article 19 does not restrict emergency-related laws carrying the required recital or executive action under them; unrelated action remains outside the shield.

- □ **Art 359** — President may suspend the right to move specified courts for enforcement of named Fundamental Rights, and pending proceedings, for the stated scope;

- post-44th Amdt **Art 20 & 21 can NEVER be suspended**.

MUST-KNOW FACTS

1. Art 358 — during a War/External Emergency, Article 19 does not restrict emergency-related laws carrying the required recital or executive action under them; unrelated action remains outside the shield.

2. Art 359 — President may suspend the right to move specified courts for enforcement of named Fundamental Rights, and pending proceedings, for the stated scope;

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Effects □

HIGH

Advanced · Art 358 vs 359 (7 differences) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

	Art 358	Art 359
□ Scope	Only **Art 19**	Any FR in Presidential Order (except 20, 21)
□ Operation	**Automatic**	Needs Presidential Order
□ Trigger	**External** Emergency only	External **and** Internal
□ Duration	Whole emergency	Period specified
□ Extent	Whole country	Whole or part

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Art 358 vs 359 (7 differences) □

HIGH

Advanced · Declarations (3 times) □

GS-II Indian Polity

INTRO & ORIGIN

□ **1962** (China/NEFA, till 1968), **1971** (Pakistan war), **1975** (internal disturbance — Indira Gandhi, most controversial). □ **Shah Commission** (Janata govt) did not justify 1975 → led to the **44th Amendment 1978**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 1962 (China/NEFA, till 1968), **1971** (Pakistan war), **1975** (internal disturbance — Indira Gandhi, most controversial). **Shah Commission** (Janata govt) did not justify 1975 → led to the **44th Amendment 1978**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Declarations (3 times) □

HIGH

Advanced · PRESIDENT'S RULE (Art 356) — "State/Constitutional Emergency" □□

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PRESIDENT'S RULE (Art 356) — "State/Constitutional Emergency" □□.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → PRESIDENT'S RULE (Art 356) — "State/Constitutional Emergency" □□

HIGH

Advanced · Grounds

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 355** = Centre's duty to ensure states run per the Constitution. **Art 356** — President satisfied that state government "**cannot be carried on in accordance with the Constitution**" (on Governor's report **or otherwise**). **Art 365** — state failing to comply with Centre's directions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 355 = Centre's duty to ensure states run per the Constitution. **Art 356** — President satisfied that state government "**cannot be carried on in accordance with the Constitution**" (on Governor's report **or otherwise**). **Art 365** — state failing to comply with Centre's directions.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Grounds

HIGH

Advanced · Approval & Duration □

GS-II Indian Polity

INTRO & ORIGIN

□ Approval within **2 months**, by **simple majority**. Continues **6 months**, extendable to **max 3 years** (every 6 months). □ **44th Amdt:** beyond **1 year**, extension needs BOTH — (a) a National Emergency in force, and (b) **ECI certifies** elections can't be held.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Approval within **2 months**, by **simple majority**. Continues **6 months**, extendable to **max 3 years** (every 6 months). **44th Amdt:** beyond **1 year**, extension needs BOTH — (a) a National Emergency in force, and (b) **ECI certifies** elections can't be held.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Approval & Duration □

HIGH

Advanced · Consequences

GS-II Indian Polity

INTRO & ORIGIN

□ President assumes state government's functions + Governor's powers; **dismisses the CoM/CM**; Parliament exercises state legislature's powers (**"President's Acts"**); assembly **suspended or dissolved**. □ **President CANNOT** take over the **state High Court's** powers.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President assumes state government's functions + Governor's powers; **dismisses the CoM/CM**; Parliament exercises state legislature's powers (**"President's Acts"**); assembly **suspended or dissolved**. **President CANNOT** take over the **state High Court's** powers.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Consequences

HIGH

Advanced · Bommai case (1994) — 10 propositions □□ (very high-yield)

GS-II Indian Polity

INTRO & ORIGIN

 Proclamation is **subject to judicial review**; satisfaction must rest on **relevant material** (burden on Centre); court can **restore** a dismissed government; **assembly dissolved only after Parliament approves** (suspend till then); **secularism is a basic feature** (anti-secular govt → Art 356); majority tested on the **floor of the House**; a new Centre can't dismiss opposition state governments; Art 356 is an **exceptional, last-resort** power. **Ambedkar** hoped Art 356 would remain a "**dead letter**" / last resort — Kamath: "Ambedkar is dead and the Articles are very much alive." Imposed **125+ times** (often misused).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Proclamation is **subject to judicial review**; satisfaction must rest on **relevant material** (burden on Centre); court can **restore** a dismissed government; **assembly dissolved only after Parliament approves** (suspend till then); **secularism is a basic feature** (anti-secular govt → Art 356); majority tested on the **floor of the House**; a new Centre can't dismiss opposition state governments; Art 356 is an **exceptional, last-resort** power. **Ambedkar** hoped Art 356 would remain a "**dead letter**" / last resort — Kamath: "Ambedkar is dead and the Articles are very much alive." Imposed **125+ times** (often misused).

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Bommai case (1994) — 10 propositions (very high-yield)

HIGH

Advanced · National Emergency vs President's Rule

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

	National (352)	President's Rule (356)
Approval majority	**Special**	**Simple**
Max duration	**Indefinite**	**3 years**
State organs	Continue (concurrent Centre power)	Executive **dismissed**, legislature suspended/dissolved
Effect on FRs	**Yes**	**No**
LS revocation resolution	**Yes**	No (President only)

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → National Emergency vs President's Rule

HIGH

Advanced · FINANCIAL EMERGENCY (Art 360) □

GS-II Indian Polity

INTRO & ORIGIN

□ Declared if **financial stability/credit of India** is threatened. Approval within **2 months** (simple majority); once approved, continues **indefinitely** (no renewal needed). □ **Effects:** Centre directs states on **canons of financial propriety**; can **reduce salaries** of state employees AND **SC/HC judges** & Union employees; reserve state money bills for President. □ **Never declared** (closest: 1991 crisis). □ Modelled on the US **National Recovery Act 1933** (Great Depression) — per Ambedkar.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Declared if **financial stability/credit of India** is threatened. Approval within **2 months** (simple majority); once approved, continues **indefinitely** (no renewal needed). **Effects:** Centre directs states on **canons of financial propriety**; can **reduce salaries** of state employees AND **SC/HC judges** & Union employees; reserve state money bills for President. **Never declared** (closest: 1991 crisis). Modelled on the US **National Recovery Act 1933** (Great Depression) — per Ambedkar.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → FINANCIAL EMERGENCY (Art 360) □

HIGH

Advanced · Criticism (Constituent Assembly)

GS-II Indian Polity

INTRO & ORIGIN

□ **H.V. Kamath** — "foundation of a totalitarian/police state." **K.T. Shah** — "chapter of reaction and retrogression." **T.T. Krishnamachari** — "constitutional dictatorship." **H.N. Kunzru** — threat to states' financial autonomy. □ Defenders: **Alladi Krishnaswami Ayyar** — "**very life-breath of the Constitution**"; **Mahabir Tyagi** — "**safety-valve**."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. H.V. Kamath — "foundation of a totalitarian/police state." **K.T. Shah** — "chapter of reaction and retrogression." **T.T. Krishnamachari** — "constitutional dictatorship." **H.N. Kunzru** — threat to states' financial autonomy. Defenders: **Alladi Krishnaswami Ayyar** — "**very life-breath of the Constitution**"; **Mahabir Tyagi** — "**safety-valve**."

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Criticism (Constituent Assembly)

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: National Emergency can be declared on "internal disturbance"

CORRECT: replaced by **"armed rebellion"** (44th Amdt).

WRONG: Art 20 & 21 can be suspended in emergency

CORRECT: never (post-44th Amdt).

WRONG: Art 358 operates in armed-rebellion emergencies

CORRECT: only War/External Emergency.

WRONG: President's Rule needs special majority

CORRECT: simple majority; National Emergency needs **special**.

WRONG: President's Rule has no time limit

CORRECT: max 3 years; National Emergency **is** indefinite.

WRONG: Financial Emergency needs periodic renewal

CORRECT: once approved, continues indefinitely.

WRONG: During President's Rule, President takes over the High Court

CORRECT: cannot touch the HC.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □ **Proclamation status, 28 August 2026:** No National Emergency or Financial Emergency is in force. President's Rule imposed in Manipur on 13 February 2025 was revoked on **4 February 2026**, restoring elected government. □ □□ **50th anniversary of the 1975 Emergency (25 June 2025)** — recurring debate on democratic safeguards; **"Samvidhaan Hatya Diwas"** notified. □□ Frequent Art 356 & Governor-role controversies (Maharashtra/Delhi floor-test cases) keep **Bommai** doctrine live. □□ *Financial Emergency* debated but never invoked even amid economic shocks.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
"Emergency provisions make India unitary." Evaluate the federal-unitary balance post-44th Amendment. Bommai and the taming of Art 356 — has judicial review ended the "deadly weapon"? Should Art 20 & 21's non-suspendability be extended to all Fundamental Rights? less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	GS-II	3	Circumstances and consequences of a Financial Emergency	Under what circumstances · 10 marks · 150 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2023	GS-II	13	Reduced frequency of use of Article 356 since the mid-1990s	Account for · 15 marks · 250 words	Routed to owning topic; word limit taken from the instruction block	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2018, 2023* ***Paper(s):*** *GS-II* ***Routed question demands:*** *2*

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Circumstances and consequences of a Financial Emergency

Advanced learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Circumstances and consequences of a Financial Emergency	**Dimension 2** Reduced frequency of use of Article 356 since the mid-1990s
Dimension 3 The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

STATIC THEORY

- Reduced frequency of use of Article 356 since the mid-1990s

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE → What this owner must now support

End of Register Notes - UPSC Agent / Copilot CLI